

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 12  
MARCH 25, 2026  
8:30 a.m.

**7. WILFRIDO HERNANDEZ BAUTISTA V. JOANNA T. ROJAS**

**23FL1226**

This matter is before the court on the Request for Order (RFO) filed by the Respondent to modify child custody and visitation. The original RFO was filed on December 11, 2025; and a hearing date was set for February 11, 2026. The filing of the RFO prompted the court to refer the parties to a CCRC session set for December 29, 2025.

Proof of service for the original RFO (and CCRC referral) was not filed until February 03, 2026, and appeared to indicate untimely service on January 30, 2026.

The court received a "One Parent" report dated December 29, 2025, indicating that only the Respondent appeared for the CCRC session, for which reason, the CCRC counsellor was unable to make any recommendations to the court.

At the hearing on February 11, 2026, the court granted the Respondent's request to continue the matter to March 25, 2026, to correct the service issue.

Later on February 11, 2026, the Respondent filed an updated RFO to modify child custody and visitation. Proof of service filed March 11, 2026, shows the updated RFO was personally served upon the Petitioner on March 09, 2026 (12 court days before the March 25, 2026, hearing), which is untimely under Code of Civil Procedure section 1005, subdivision (b), which requires 16 court days' notice. (Code Civ. Proc., § 1005, subd. (b).)

The court intends to drop the matter from the calendar due to the untimely service.

**TENTATIVE RULING #7: MATTER IS DROPPED FROM THE CALENDAR DUE TO UNTIMELY SERVICE.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.**

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**8. WILLIAM SPICER V. DAJUAN COFIELD**

**25CV2421**

**TENTATIVE RULING #8: APPEARANCES ARE REQUIRED AT 8:30 A.M.,  
WEDNESDAY, MARCH 25, 2026, IN DEPARTMENT 12 TO SELECT A NEW HEARING DATE.**